

23VECV04263 23VECV04263

County: los-angeles

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Case Number: 23VECV04263 Hearing Date: September 24, 2026 Dept: I

23VECV04263 TAMJIDI v. ASHLER OAKS,
LLC, et al.

September 24, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to be Relieved as Counsel

I.

Background

This is a landlord-tenant action arising out of the rental agreement between Plaintiff Hamid Reza Tamjidi ("Plaintiff") and Defendants Ashler Oaks, LLC ("Ashler"), Tanglewood Apartments, LLC ("Tanglewood"), Cheyenne Vista, LLC ("CVL"), Redgate Arlington, LLC ("Redgate"), and the Lighthouse Group, LLC ("Lighthouse") (collectively, "Defendants"), for renting the real property located at 6220 Owensouth Ave., #102, Woodland Hills. CA 91367 (the "Subject Property"). On September 26, 2023, Plaintiff filed the operative Complaint against Defendants and DOES 1 through 50, alleging causes of action for: (1) Negligence – Cal. Civ. Code §§ 1714(a), 3333; (2) Breach of Warranty of Habitability; (3) Breach of Covenant of Quiet Enjoyment; (4) Premises Liability; (5) Nuisance; and (6) Intentional Infliction of Emotional Distress.

On July 12, 2024, Defendants filed an Answer to the Complaint and Cross-Complaint against Plaintiff and ROES 1 through 10 (collectively, "Cross-Defendants"), alleging causes of action for:

(1) Breach of Contract; and (2) Common Counts.

On October 7, 2024, Plaintiff filed an Answer to the Cross-Complaint.

On July 1, 2026, Non-Party Shahram Tamjidi ("Tamjidi") filed a Motion to Determine Successor-in-Interest and Authorizing Substitution of Party Plaintiff. The matter was fully briefed and came for hearing on August 28, 2026; the motion was granted.

On August 31, 2026, Macauley Expenisi, Esq. of Oceanbridge Law Firm, APC ("Counsel") filed the instant Motion to be Relieved as Counsel for Tamjidi. Any opposition would have been due on September 11, 2026. To date, no opposition has been filed.

II. Discussion

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code Civ. Proc., § 284, subd. (2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Ct., Rule 3.1362, subd. (a)), MC-052 (Declaration) (Cal. Rules of Ct., Rule 3.1362, subd. (c)), and MC-053 (Proposed Order) (Cal. Rules of Ct., Rule 3.1362, subd. (e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Ct., Rule 3.1362, subd. (e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Ct., Rule 3.1362, subd. (d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the

court. (Cal. Rules of Ct., Rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

Here, Counsel

has filed forms MC-051 and MC-052 and has lodged with the court a copy of the proposed order on form MC-053 as required. (Cal. Rules of Court, rule 3.1362.) Counsel states the instant motion is filed for the following reason: "An irreconcilable breakdown in the attorney-client relationship has occurred, such that effective representation is no longer possible. Following the substitution of Shahram Tamjidi as successor-in-interest and Party Plaintiff in this action, a conflict of interest has arisen. The substituted Plaintiff has expressly requested that this office withdraw from representation in this matter. On August 29, 2026, by an email plaintiff terminated our firm. Withdrawal is necessary and appropriate under these circumstances. I am not aware of any prejudice to any party that would result from this withdrawal, and the case status, including any scheduled dates, is set forth in the accompanying motion papers. Continuing as attorney in the case will only result in further conflict of interest between a party and his attorney's office." (See MC-051, ¶3; MC-052, ¶2.) The court finds this is a valid reason to withdraw as counsel. (See Rules Prof. Conduct, rule 1.16, subd. (b)(4).)

Counsel further declares the moving papers and accompanying forms have been served on Plaintiff via first-class mail on August 31, 2026 at Tamjidi's last known address confirmed via his June 22, 2026 affidavit of successor-in-interest. (MC-052, ¶3b; POS, 9/1/26.) The proof of service accompanying the moving papers also demonstrates that all the other parties who have appeared in this case were served with required forms. (Cal. Rules of Ct., Rule 3.1362, subd. (d); POS re Electronic Service, 9/1/26.)

Moreover, the proposed order includes all of the remaining hearings scheduled in this action in accordance with California Rules of Court, rule 3.1362, subdivision (e). Although the jury trial is set for January 11, 2027, which is approximately four months from now, Counsel attests that Tamjidi sought to terminate the attorney-client relationship. Thus, there would be no prejudice in allowing Counsel to withdraw.

III.

Conclusion

Accordingly, Counsel Macauley Expenisi, Esq. of Oceanbridge Law Firm, APC's Motion to be Relieved as Counsel for Shahram Tamjidi is GRANTED.

Counsel Macauley Expenisi, Esq. to
give notice.